

SENATE BILL 1218

By Oliver

AN ACT to amend Tennessee Code Annotated, Title 40
and Title 41, relative to the "Parole Relief and
Opportunity Act."

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. This act is known and may be cited as the "Parole Relief and Opportunity Act."

SECTION 2. Tennessee Code Annotated, Section 40-28-202(a), is amended by adding the following new subdivision:

(8) A parolee whose income level does not meet the requirements of basic necessities of the parolee's household when considering the parolee's family responsibilities or who has not obtained gainful employment that would allow the person to meet basic necessities of the parolee's household despite reasonable efforts to do so.

SECTION 3. Tennessee Code Annotated, Section 40-28-202(b), is amended by deleting the language "subdivisions (a)(1), (3) and (4)" and substituting "subdivisions (a)(1), (3), (4), and (8)".

SECTION 4. Tennessee Code Annotated, Section 40-28-201(a)(2), is amended by deleting the language "In addition" and substituting "Except in those cases waived by the director as hardship cases, in addition".

SECTION 5. Tennessee Code Annotated, Section 40-28-201(a)(3)(B), is amended by deleting the last sentence and substituting:

In cases of hardship as set forth in § 40-28-202, the department must waive the payment required by this subdivision (a)(3)(B).

SECTION 6. Tennessee Code Annotated, Section 40-28-201(a)(5), is amended by adding the following language to the end of the subdivision:

In cases of hardship as set forth in § 40-28-202, the department must waive the fee required by this subdivision (a)(5).

SECTION 7. Tennessee Code Annotated, Section 40-28-201(c), is amended by deleting the subsection and substituting:

(1) Except as provided in subdivision (c)(2), in the event of more than two (2) months' arrearage or delinquency in making either or both of the contributions, the arrearage or delinquency constitutes sufficient ground for revocation of the parole, probation, or other release program of the person in arrears.

(2) A person who has not made the contributions required by this section for a period of two (2) months may notify the department that the person is experiencing a hardship, pursuant to § 40-28-202, and request the department to reevaluate the person's financial ability to comply with this section. If the department determines that the person is experiencing a hardship, the contributions that the person has not made must be waived and the person must not be required to make future contributions until such time that the person is no longer experiencing a hardship.

SECTION 8. This act takes effect July 1, 2025, the public welfare requiring it.